

26PSCV01549 26PSCV01549

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 26PSCV01549 Hearing Date: August 10, 2026 Dept: G

Defendant

Hyundai Motor America's Motion to Compel Binding Arbitration

Respondent:

Plaintiff Arlene Rangel

TENTATIVE

RULING

Defendant

Hyundai Motor America's Motion to Compel Binding Arbitration is DENIED.

BACKGROUND

This

is a Song-Beverly action arising out of the purchase of an allegedly defective motor vehicle. On February 19, 2024, plaintiff Arlene Rangel (Rangel) allegedly bought an SUV manufactured by defendant Hyundai Motor America (HMA).

On April

30, 2026, Rangel filed the Complaint, alleging causes of action for (1) breach of express warranty in violation of the Song-Beverly Act, (2) breach of implied warranty in violation of the Song-Beverly Act, and (3) failure to service and repair in violation of the Song-Beverly Act.

On June

4, 2026, HMA filed this motion to compel arbitration. On July 28, 2026, Rangel filed the

opposition, and on August 3, 2026, HMA filed the reply. The motion is set for hearing on August 10, 2026.

REQUEST FOR JUDICIAL NOTICE

HMA

requests that the court take judicial notice of the Complaint. The court may take judicial notice of the records of any California court, including its own. (Evid. Code, § 452, subd. (d).)

Therefore,
the court takes judicial notice of the Complaint.

EVIDENTIARY OBJECTIONS

Rangel

objects to a portion of, and an attachments to, the declaration of Ali Ameripour. The following objections are OVERRULED:

1–2.

ANALYSIS

HMA

moves to compel arbitration pursuant to the arbitration clause in the 2023 Owner's Handbook and Warranty Information (the owner's handbook). For the following reasons, the motion is DENIED.

Legal
Standard

“A

written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.” (Code Civ. Proc., § 1281.) The court must grant a petition to compel arbitration unless it finds no written agreement to arbitrate exists, the right to compel arbitration has been waived, grounds exist for revocation of the agreement, or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues.

(Code Civ. Proc., § 1281.2.)

In

a motion or petition to compel arbitration under both California and federal law, “the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal quotation marks omitted.) Once the court finds an arbitration agreement exists and that the dispute is covered by the agreement, the party opposing arbitration bears the burden of establishing a defense to enforcement by preponderance of the evidence. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) In interpreting an arbitration agreement, courts apply the same principles used to interpret contractual provisions with the fundamental goal of giving effect to the parties’ mutual intentions and applying contractual language if clear and explicit. (*Valencia v. Smyth* (2010) 185 Cal.App.4th 153, 177.) Because public policy strongly favors arbitration, “any doubts regarding the arbitrability of a dispute are resolved in favor of arbitration.” (*Coast Plaza Doctors Hospital v. Blue Cross of Cal.* (2000) 83 Cal.App.4th 677, 686.)

Discussion

The

moving party’s burden is twofold: first, provide prima facie evidence that an arbitration agreement exists between the parties, and second, that agreement applies to the dispute. (See *Rosenthal*, *supra*, 14 Cal.4th at 413.)

The

court finds HMA failed to meet its burden of demonstrating that the parties agreed to arbitrate their dispute in the owner’s handbook. HMA provides a “true and correct copy of [the owner’s handbook.” (*Ameripour Decl.*, ¶ 4; see *Ameripour Decl.*, Exh. 2.) The owner’s handbook states:

If you purchased or leased your Hyundai vehicle in the State of California, you and [HMA] each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising of the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty. . . shall be resolved by binding arbitration. . . . (*Ameripour Decl.*,

Exh. 2, section 4, p. 12.)

The

handbook was produced by HMA and evidences HMA's assent to arbitration. (See Ameripour Decl., Exh. 2.) However, HMA fails to present evidence that Rangel

agreed to the arbitration provision in the owner's handbook. Neither her name nor her signature appear in the handbook, and there is no evidence that Rangel agreed to the handbook's contents. (See Ameripour Decl.,

Exh. 2.) Based on this lack of evidence,

the court finds HMA failed to meet its burden to demonstrate that it made an agreement to arbitrate with Rangel.

Since

HMA failed to provide sufficient evidence of an arbitration agreement with Rangel,

the court need not examine whether this dispute is covered by the arbitration provision or whether there are any defenses to enforcement.

Accordingly,

the motion to compel arbitration is DENIED.

CONCLUSION

For

these reasons, the motion to compel arbitration is DENIED.